Gmail

AshLe' Penn <ashlepenn.ap3@gmail.com>

Your January 28, 2026 Commitment – Evidence and Required Corrective Action

4 messages

AshLe' Penn <ashlepenn.ap3@gmail.com> Tue, Aug 11, 2026 at 2:39 PM
To: FAULKNER Sonya <Sonya.Faulkner@odhs.oregon.gov>
Cc: yazmin.wadia@doj.oregon.gov, "Laurie Hernandez (she/her/ella)" <laurie.k.hernandez@odhs.oregon.gov>, alicia.l.reynolds@odhs.oregon.gov, Milne David <david.milne@odhs.oregon.gov>, Hopkins Skye F <skye.f.hopkins@odhs.oregon.gov>, "Kimberly A. Beck" <kimberly.a.beck@ojd.state.or.us>, richard.e.moellmer@ojd.state.or.us, attorneygeneral@doj.oregon.gov, alexis.l.amorelli@odhs.oregon.gov, countycounsel@washingtoncountyor.gov, SARAH.A.BURWELL@dhsoha.state.or.us

Sonya Faulkner_1.28.mp3

Sonya Faulkner_4.28 (1).mp4

Ms. Faulkner,

I am adding this before I send, because of what occurred between my daughter and caseworker David Milne today, with me on the line, and it will not wait for a 72-hour reply.

This morning, caseworker David Milne transported Al-mira to a medical appointment. Afterward, at the current foster placement, I was on the phone asking Mr. Milne to state why my daughter cannot come home. He repeated only "safety plan." When I asked what that plan would protect her from, he first said it would ensure "no children are being beaten with a belt"; when I asked whether that was actually alleged, he admitted it was "an example," then shifted to statements Al-mira made at the hospital. As I pressed him to name any real, current danger, my daughter began screaming — Mr. Milne had closed the car door on her arm as she reached in for her paperwork and a toy the doctor had given her. He turned and walked away from a crying, injured child and said he was calling law enforcement. A neighbor came out to stay with Al-mira and witnessed that Mr. Milne had been aggressive with her. Paramedics were called. Al-mira was taken to the hospital with bruising to her arm and is awaiting an x-ray as I write this. I have the entire incident recorded.

This is not isolated. Weeks earlier, Mr. Milne told my daughter he would hit her — that he "would hit her but won't give her the satisfaction." Today the State's own caseworker physically injured her.

Understand precisely what that means. ODHS removed Al-mira from me on September 6, 2025 on the stated theory that she faced physical danger. In ODHS's custody since, she has been shuffled among placements, told by your caseworker she deserved to be hit, and today had her arm shut in a car door by that same caseworker — physical injury to the child by the very agency that invoked physical danger to take her. The State cannot claim my daughter is safer in its care than in mine while the State is the source of the harm.

I am therefore no longer only asking you to correct a fabricated record. **I demand that Al-mira be returned to my care immediately — today** — and that ODHS state, in writing, any lawful basis it claims for keeping an injured child in the custody of the agency whose own employee injured her. Every hour she remains is now a decision you are making with direct knowledge of what your staff did to her.

Preserve everything from today: Mr. Milne's report and any ODHS communications about this incident, the law-enforcement call he says he made, the paramedic and hospital records, and the placement records. I am preserving my recording and the witness's account.

Also, on January 28, 2026, on a recorded call you told me that if you found “any unlawful or concerning information in the record or any information that we perjured ourselves, I would absolutely handle that with our employees and also notify the court.” You also said you would review the representations at issue and reconnect. You have not done so.

This email removes any possibility that you “don’t have access” to the record you are responsible for. Attached are:

- **Formal Notice of Fabrication, Material Omission, and Required Action under Your Recorded Commitment** (PDF), which walks through the false testimony, omissions, and fabrications in ODHS’s own words and documents; and
- **Audio and transcript excerpts of the dependency hearings and calls** you told me you did not have, including your own January 28, 2026 statements and the sworn testimony ODHS personnel used to secure and maintain jurisdiction and default.

You now have, in your inbox, (1) the case record ODHS chose to present to the juvenile court and (2) ODHS’s own files, transcripts, and recordings that disprove that record point-by-point. The contrast is not a “difference of opinion.” **It is perjury**, fabrication, and knowing omission of exculpatory facts with a reckless disregard for the truth by your staff and by the AAG, used to secure and maintain custody of my daughter despite the well-documented harm your agency is aware of in removing a child from their caregiver and despite the disparate treatment you, yourself, acknowledged to me with regard to families of color in your district.

There is no amount of acceptable perjury in a dependency case. Once you are on written and recorded notice that your agency lied to the court to obtain jurisdiction, to default a parent your own records showed was locatable and participating, and to characterize a non-offending Black mother as dangerous while ignoring and concealing your own exculpatory evidence, **you do not get to point at “the court’s findings” and walk away**. Jurisdiction entered on false evidence is not self-justifying. It is the injury.

You told me you recognize the racism in your county and that you talk about it regularly. **This is that racism in operation:** a child-welfare agency “policing” a parent it has no lawful business interfering with the care, custody and control of their child, manufacturing evasion from its own misdirected notices, converting my assertion of constitutional and statutory rights into “danger,” and suppressing the recantation and service defects that would, and should, have stopped the removal and default. You cannot credibly claim to care about racism in your system while you sit on a record like this ***and do nothing.***

At this point, you face a simple choice:

1. **Honor your recorded commitment** and use your authority to correct what your agency has done:
    - Move the juvenile court to set aside the October 31, 2025 default and every judgment resting on it under ORS 419B.923;
    - Put the withheld facts, recantation, and service defects on the record;
    - Identify in writing which ODHS representations you now concede were false, unsupported, or materially incomplete and those which you continue to stand behind, with specific record citations;
    - **Refer the identified employees for perjury and professional-conduct review; and**
    - Preserve all records described in the attached notice.
2. **Or make a conscious decision to leave a known fabricated record in place** and continue separating a child from her mother on findings you know your own file contradicts.

You no longer have the option of saying you “didn’t know,” “didn’t have the hearings,” or “the court already decided.” You have the hearings. You have your own words. You have ODHS’s own documents, in one place, in a format any attorney or judge or leader in your position can follow.

I am giving you seventy-two (72) hours from receipt of this email to acknowledge in writing that you have received and opened the attachments and to tell me, in plain terms, whether you intend to:

- Move the court to set aside the default and judgments and return my child to me (even if only while the court processes these fabrications - but in acknowledgement that you have no basis to keep her from me)
- Disclose the withheld facts and the recantation to the court, and
- Initiate referrals for perjury and professional-conduct review as outlined in the attached notice.

If you choose to do nothing, I will treat that as your deliberate decision to leave a known fabricated record in place and to continue endorsing it. At that point I will proceed accordingly, including elevating this beyond your office and pursuing federal action against your agency.

This is not a request for your discretion over my daughter's placement. It is a demand that you stop hiding behind orders your agency obtained through lies, and that you either correct what you now know to be false or own, in writing, your refusal to do so.



2025-09-08 - ODHS Protective Custody Report.pdf

2025-09-08 - Proof of Service.pdf

2025-09-08 - Shelter Order.pdf

2025-09-08 - State's Dependency Petition.pdf

2025-09-17 - ODHS Report.pdf

2025-09-22 - Proof of Service.pdf

2025-10-13 - ODHS Report.pdf

2025-10-14 - Order Re. Jurisdiction.pdf

2025-10-21 - DeclarationofDiligentEffortstowardService.pdf

2025-10-21 - Return of Non-Service.pdf

2025-10-23 - ODHS Report.pdf

2025-10-28_AffidavitRe.EffortstoServeParent.pdf

2025-10-30 - ODHS Letter Re. Service Efforts.pdf

2025-10-31 - Judgment of Jurisdiction.pdf

2025-11-12 - ODHS Report.pdf

Sender notified by
Email Tracker

Sonya_Faulkner_08.11.26.pdf

Sender notified by
Email Tracker

7 attachments

- **SonyaFaulknerByte.mp4** 5517K
- **Courtroom110L_20251031-0904_01dc4a456ae71440.trs** 9K
- **Courtroom120L_20250908-1319_01dc20c3370ebd3c.trs** 6K
- **Courtroom110L_20251014-1017_01dc3cf3c16a4940.trs** 5K
- **Courtroom110L_20260223-0904_01dca4a367ee8b96.trs** 7K
- **2025-02-10 - OHDS Report-compressed.pdf** 96K
- **2025-09-08 - ODHS Fact Findings Report_compressed.pdf** 8228K

FAULKNER Sonya <Sonya.FAULKNER@odhs.oregon.gov> Wed, Aug 12, 2026 at 9:53 AM
To: AshLe' Penn <ashlepenn.ap3@gmail.com>
Cc: Wadia Yazmin <Yazmin.Wadia@doj.oregon.gov>, "Laurie Hernandez (she/her/ella)" <LAURIE.K.HERNANDEZ@odhs.oregon.gov>, Reynolds Lou <ALICIA.L.REYNOLDS@odhs.oregon.gov>, Milne David <DAVID.MILNE@odhs.oregon.gov>, Hopkins Skye F <SKYE.F.HOPKINS@odhs.oregon.gov>, Amorelli Alexis L <ALEXIS.L.AMORELLI@odhs.oregon.gov>, Burwell Sarah A <SARAH.A.BURWELL@odhs.oregon.gov>

Good morning Ms. Penn,

I had obtained the shelter hearing recordings and reviewed the testimony. I understand how important accuracy and clarity are in these situations. After reviewing the information, I had not found any indication that the employee committed perjury or engaged in concerning professional conduct. It appears the issue stems from a difference in interpretation and perspective. The caseworker's statement relates to their need for direct access to you, your household, and the other children in the home in order to confirm a safe environment and develop an appropriate safety plan. This need for direct access is a standard and essential part of ensuring child safety.

I recognize that ODHS policies are complex, communicating with your caseworker is the best approach to getting your questions and concerned answered.

If you wish to request that the case be dismissed or your child, be returned to your care, I encourage you to request a special court hearing be set or attend your next court hearing and speak directly with the Judge. This will give you the opportunity to share your perspective and ask for any specific actions you believe are appropriate.

I also want to let you know that there will be a shift in caseworker assignment. Our hope is that this transition supports improved communication, a clearer understanding of expectations, and continued progress with the case plan. We recognize how important it is for you to feel heard and supported, and we believe this change will help strengthen collaboration going forward. Skye will reach out to you to discuss those details.

Sincerely,

Sonya Faulkner (she/her)

District 16 Interim Manager

Washington County

Sonya.Faulkner@odhs.oregon.gov

503-559-0544

OREGON DEPARTMENT OF Human Services

From: AshLe' Penn <ashlepenn.ap3@gmail.com>
Sent: Tuesday, August 11, 2026 2:39 PM
To: FAULKNER Sonya <Sonya.FAULKNER@odhs.oregon.gov>
Cc: Wadia Yazmin <Yazmin.Wadia@doj.oregon.gov>; Laurie Hernandez (she/her/ella) <LAURIE.K.HERNANDEZ@odhs.oregon.gov>; Reynolds Lou <ALICIA.L.REYNOLDS@odhs.oregon.gov>; Milne David <DAVID.MILNE@odhs.oregon.gov>; Hopkins Skye F <SKYE.F.HOPKINS@odhs.oregon.gov>; Kimberly A. Beck <Kimberly.A.Beck@ojd.state.or.us>; Richard Moellmer <Richard.E.MOELLMER@ojd.state.or.us>; attorneygeneral@doj.oregon.gov; Amorelli Alexis L <ALEXIS.L.AMORELLI@odhs.oregon.gov>; countycounsel@washingtoncountyor.gov; Burwell Sarah A <SARAH.A.BURWELL@odhs.oregon.gov>
Subject: Your January 28, 2026 Commitment – Evidence and Required Corrective Action

Think twice before clicking on links or opening attachments. This email came from outside our organization and might not be safe. If you are not expecting an attachment, contact the sender before opening it.

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AshLe' Penn <ashlepenn.ap3@gmail.com> Wed, Aug 12, 2026 at 10:42 AM
Draft To: FAULKNER Sonya <Sonya.FAULKNER@odhs.oregon.gov>
Cc: Wadia Yazmin <Yazmin.Wadia@doj.oregon.gov>, "Laurie Hernandez (she/her/ella)" <LAURIE.K.HERNANDEZ@odhs.oregon.gov>, Reynolds Lou <ALICIA.L.REYNOLDS@odhs.oregon.gov>, Milne David <DAVID.MILNE@odhs.oregon.gov>, Hopkins Skye F <SKYE.F.HOPKINS@odhs.oregon.gov>, Amorelli Alexis L <ALEXIS.L.AMORELLI@odhs.oregon.gov>, Burwell Sarah A <SARAH.A.BURWELL@odhs.oregon.gov>

Ms. Faulkner,

Your response is not a review of the record. It is a conclusion without analysis, citations, findings, or accountability.You cite no ODHS Policy.

You state that you obtained the shelter-hearing recordings, reviewed the testimony, and found “no indication” of perjury or concerning professional conduct. You do not identify what portions of the recordings you reviewed, what agency records you compared against the testimony, what factual findings you made, or which of the specific sworn statements identified in my notice you have concluded are true.

Instead, you invoke a generalized need for “direct access” to me, my household, and my children. That does not answer whether ODHS personnel gave false sworn testimony about historical facts already established—or disproved—by records in ODHS’s possession. Present access to my home cannot retroactively turn a false statement into a true one. It cannot cure fabricated testimony. It cannot convert the omission of exculpatory information into a legitimate “difference in interpretation.”

You promised, on a recorded line, that if you found that ODHS had perjured itself or engaged in unlawful conduct, you would handle it with your employees and notify the court. You now claim to have reviewed the relevant evidence. Yet you have refused to state a position on the actual sworn representations at issue.

These are not vague concerns. They are specific statements that ODHS personnel made under oath or placed in official records:

1. **“Mother did not engage in any services and actually failed to do any of the services.”**
   Marquand gave that testimony, then later admitted in the same hearing that I “has engaged in those assessments,” qualifying only that she believed the engagement was “limited.” ODHS possessed my neuropsychological evaluation, parenting education, domestic-violence-service records, releases, agency-contact records, and other documentation of engagement. The question is not whether you presently want access to me. The question is: **what record allowed Marquand to testify that I had engaged in none of the services?** Identify it.SF_Committment.pdf

2. **“Mother refused to pick this child up from the hospital” and refused to protect her.**
   ODHS’s own Protective Custody Report records that I could not get to the hospital except by bus, that it would take hours, that I could not get time off work as expected, and that I arranged for the maternal great-uncle to go to the hospital. ODHS approved him as a relative placement within approximately twenty-four hours. Arranging an approved relative placement when transportation is unavailable is not refusing to retrieve or protect a child. What record supports the word “refused”? SF_Committment.pdf

3. **The sworn allegation that I coached Al-mira to recant.**
   ODHS recorded a supposed concern about coaching at approximately 2:30 p.m. on September 6, 2025—before my first contact with Al-mira at approximately 5:00 p.m. A theory that I coached a statement before I had contact with my daughter is not an interpretation. It is temporally impossible on ODHS’s own timeline. No agency record identifies a witness, recording, observation, or other evidence that I coached her. Identify the evidence you relied on in concluding this allegation was not concerning professional misconduct.SF_Committment.pdf

4. **The representation that the hotline-call count established neglect, abuse, substance use, or parental deficiency by me.**
   A hotline call is not a founded finding. ODHS’s own intake history distinguishes founded, unfounded, unable-to-determine, screened-out, duplicate, and pending reports. The record described in my notice shows one historical founded failure-to-protect finding tied to violence by another person; it does not support presenting a total count of calls as proof that I abuse, neglect, or lack the ability to parent my child. Tell me which specific founded finding you contend supports the narrative ODHS gave the court.SF_Committment.pdf

5. **The suggestion that I presented a current substance-use safety concern.**
   Marquand invoked “significant concerns” about substance use while admitting under oath that ODHS had not had meaningful contact with me to fully assess or obtain information about substance use. A concern that ODHS admits it never assessed is not evidence. What competent evidence did you find that supports this allegation, and what safety threat did ODHS identify as flowing from it?SF_Committment.pdf

6. **The assertion that I was unavailable, evading service, or could not be found.**
   ODHS’s own diligent-efforts materials document my correct address through multiple sources, telephone contact, email correspondence to which I responded, contact with caseworkers, and contemporaneous communications. Yet the agency relied on a transposed address, did not use my responsive email channel for service, did not obtain court-ordered alternative service, and then obtained default on a representation that I could not be located. This is not a matter of “direct access.” It is a documentary contradiction that went to the court’s authority to proceed against me.SF_Committment.pdf

7. **The assertion that I made little or no meaningful effort toward visitation.**
   ODHS failed to provide a workable plan, restricted contact while Al-mira was hospitalized, placed her more than thirty miles away, did not provide transportation assistance, and then attributed the predictable consequences of those agency choices to me. The record also contains inconsistent entries concerning whether visits occurred. Please identify the evidence on which you concluded that this was simply a difference of perspective.SF_Committment.pdf

8. **The omission of the recantation and the actual stated basis for the 19-minute reversal of release.**
   At 5:40 p.m. on September 6, 2025, ODHS told me it could release Al-mira to me. At 5:59 p.m., ODHS reversed course based on an attributed statement concerning self-harm if returned to my care. The statement was later recanted, and the agency knew that before the shelter hearing. Yet the stated basis was not pleaded as a jurisdictional allegation, and the recantation was not fairly presented to the court deciding whether custody would continue. You acknowledged on the January 28 call that a recantation should have been considered. Your email does not address this at all.SF_Committment.pdf

These are the items you were asked to review. You did not answer them. You did not identify one policy. You did not identify one statute, OAR, court order, safety threat, condition for return, or factual basis for the demand you now characterize as “direct access.”

A request for current access may be relevant only to a properly identified and lawful assessment process. It does not answer whether ODHS knowingly made false historical claims about service engagement, hospital pickup, coaching, substance use, visitation, service, or the circumstances of removal. Oregon defines “conditions for return” as a written statement of **specific behaviors, conditions, or circumstances** that must exist before a child can safely return—not a generalized instruction to submit to unrestricted access or cooperate with an agency that will not identify the factual premise for its demands.oregon.public

Your statement that I should “communicate with [my] caseworker” is particularly inadequate in light of your acknowledgment that a caseworker transition is now necessary. Reassignment does not cure a false record. It puts a new worker in a position to repeat it unless ODHS corrects it.

I am therefore requesting a written response, by **[date and time]**, that provides:

1. Every recording, transcript, report, case note, assessment, email, text message, or other material you reviewed before concluding there was no perjury or concerning professional conduct;

2. An item-by-item finding on each of the eight matters above, including whether ODHS maintains, retracts, corrects, or disputes the statement;

3. The particular evidence and record citation ODHS relies upon for every statement it continues to maintain;

4. The exact statute, OAR, ODHS policy, court order, and case-plan provision you contend authorizes the claimed need for direct access;

5. The specific present danger threat, if any, that ODHS claims is attributable to me;

6. The current written conditions for return, stated as specific behaviors, conditions, or circumstances;

7. Confirmation that ODHS has opened a record-correction review for the false, unsupported, materially incomplete, and misleading statements identified in my notice and in this email; and

8. Confirmation that ODHS will not repeat or rely on disputed accusations as established fact without disclosing the contrary records and my written dispute.

Finally, your email ignores the child-safety incident involving David Milne on **August 11, 2026**, when he closed my daughter in a car door. That event requires an immediate, separate response. Please identify:

1. Whether an incident report was made and its report number;

2. Whether Al-mira was examined or assessed for injury, by whom, when, and with what finding;

3. Whether medical evaluation was offered or arranged;

4. The names of everyone present and whether written accounts were obtained;

5. All existing recordings, vehicle information, texts, case notes, transportation records, and communications concerning the incident;

6. What preservation instruction has been issued; and

7. What interim safeguards are in place to ensure Mr. Milne does not transport, physically manage, or otherwise place Al-mira in an unsafe situation while the incident is reviewed.

Your email says you recognize how important accuracy and clarity are. Accuracy requires you to identify the statement, compare it to the record, and state whether ODHS stands behind it. Clarity requires you to name the policy and facts you are invoking. You have done neither.

You cannot characterize government perjury, unsupported sworn testimony, and the omission of exculpatory evidence as a “difference in interpretation” without identifying the interpretation, the evidence, or the rule that supposedly permits it.

[Quoted text hidden]

AshLe' Penn <ashlepenn.ap3@gmail.com> Thu, Aug 13, 2026 at 5:54 AM
Draft To: ross@rosslawllc.com

Dear Mr. Ross,

I found your information online in my search for an attorney who may be willing to independently evaluate the record in my daughter, Al-Mira Davis’, dependency case and, if available and willing, to assist me in addressing what I believe are serious constitutional and civil-rights violations by ODHS.

I am forwarding an email I sent to Sonya Faulkner, Interim District 16 Manager for ODHS Child Welfare, because her response is itself part of the reason I am seeking counsel. I’ve engaged Ms. Faulkner (along with caseworker David Milne) for eleven months after my daughter was removed from her father's care for the second time in 2025. After the first time she was removed from his care, ODHS brought her to me immediately upon his arrest and later followed up to request that I make my children available for interview/assessment. I did so. Emily Gonnuscio conducted a two-hour assessment of my children and my house and found there to be no concerns with having my daughter placed with me (I have three children and the the case concerns my middle daughter as my oldest and youngest have remained in my care prior to and after the incidents related to this case). The second time my daughter wass removed from his care it was only after ODHS advocated with the criminal court to remove the no-contact order, allowing her to return to her father's care as was her and her father's choice. It is concerning that Washington County Court rejected my filing when I pursued a custody order after having her placed with me. The Court claimed that Multnomah County still had jurisdiction and I was required to file there. I contested this as I am a resident of Washington County again after having my children removed from my care in 2020 due to my being a survivor of domestic violence and there being a single allegation of harm that has ever been founded against me - being a failure to protect. I challenged the court prohibiting me from filing in Washington County as I played no role in Washington County granting Multnomah County jurisdiction for the involvement of DHS in that county while I was a resident there and I assert that the court should be required to have relinquished custody as I was a resident of Washington County again. But, when Washington County took jurisdiction of my daughter, I have seen no order from Multnomah County releasing jurisdiction along the same vein as having stopped me from securing custody of my daughters earlier in the same year.

This is notable for me only because I did have my children removed and my girls were awarded to their father and their case was dismissed. My son who has a different father than my daughters was ultimately returned to my care after I completed all services. But, despite having achieved custody of my son, and in pursuing custody of both of my daughters after my son was returned the court rejected it for the reason I stated earlier. Then, during the jurisdictional hearing related to this case the caseworker plainly fabricated that I did not complete/engage *any services* and that I have a history of non-engagement with the agency.

It is true that I have an inimical relationship with the agency - which I believe is attributed to my insistence that the agency follow their own rules. ODHS workers take great issue with my stance that the agency should be held to account with respect to their own rules and therefore state and federal law. The agency has expended a good amount of itss time and energy though, still, in concocting plainly fabricated evidence against me to characterize me as a less than fit parent in the removal of one of my three children while the other two the same agency finds to be safe while in my care. To cut to the chase Mr. Ross, the agency has now made me aware (after 10 months of having my daughter) of what the conditions for return are, which you'll find in the safety plan that the agency claims I refused the night my daughter was in the hospital but which wasn't offered to me until weeks after her removal. The issue? The agency exercised emergency protective custody of my daughter the night she was removed from her fauther based on a statement the agency now concedes is at worst challenged and at best completely denied having been said by my daughter (that she would harm herself if returned to my care). The same night she made this statement the agency claims that I coached her to retract it - I did no such thing. If you're able to review the record, you'll see that I informed the agency that I was hours away by bus with no transportation and that I was sending my family in my place as I wasn't able to leave work at that exact moment but that my family would retrieve her and bring her to me. My family was present that night at the hospital and the agency completely disregarded that there was a mitigating family member present who they would later ceritfy within 24 hours to be her foster placement for the next nine months while not considering this mitigating factor in its reasonable efforts to prevent the removal. The agency would then use my phone number and email in several instances the next few days while also never telling me when and where the shelter hearing would take place. I was sure only to file a written objection to referee hearing the case and demanded that the court schedule a second shelter hearing but the juvenile court clerk rejected my filing by claiming that it did not meet "court requirements" without telling me what those requirements were that it did not meet. The agency would, even with knowledge of the truth, send their process server to an incorrect address and claim that they exhausted diligent efforts in serving me and then being allowed to proceed with a prima facie case against me depsite their knowledge of my true address, consistent emailed communications with me and no attempt to even request any other form of service from the court. the court granted the default, later acknowledged the address was wrong and has been unwilling to revisit the default obtained under false pretenses that service was reasonably calculated to apprise me of the hearings.

Where are we now?

After ignoring a mitigating family member present at the time of the removal, after converting the exercise of my right to refuse to engage the agency in any services that were not requested by me and treating such an exercise of such a right as evidence that I am "dangerous" - the agency has never achieved judicial authorization for the reason it exercised emergency protective custody of my daughter. It did not tell the court that my daughter made a statement of self harm, two days later at the shelter hearing. Instead the agency asserted that I was dangerous, lacked the capacity to understand my daughters needs because they asserted that I was not "interested in planning" for my daughter while she was in the hospital. Mr. Ross, I hope I've been able to convey how unequivocally degrading, and infuriating it is that the agency not only removed the no-contact order between my daughter and her father between the first and second removal from him, but the agency concocted a story about me that I'm dangerous after being willing to release her to me that night and citing a statement of self harm that the court was never made aware of because instead the agency fashioned allegations against me which today - they are unable to substantiate. Please review the safety plan they have finally developed. The agency claims that, again, my exercising the right to the autonomy of my home and my family and demanding that the agency edify me as to the conduct of mine *that I have to fix in order to get my daughter back* - the agency asserts none. David Milne, before he assaulted my daughter two days ago while I was on a call with him (which I have recorded) claims that there is no conduct of mine that the agency specifically has concerns about but that I'm being required to sign a safety plan that will allow ODHS and their partners unmitigated access to my home "to assess safety" in which they claim my refusal to do so is the basis that my daughter has not been returned. I find this to be outrageous. The agency claims it cannot assess my home....it has (for years). The agency claims I will not allow access to my home....I have (for years) and even recently and related to her father's crininal case - an ODHS worker assessed my home and found no safety concerns. The agency then claims that the assessment never happened. The agency claims that there is an absence of an assessment and therefore the agency has concluded that I'm dangerous. The agency will not tell me how I'm dangerous - they only say that I will be required to allow access into my home to assess safety threats. It is continuous loop of their non-response. Then the agency claims to the court that I refuse to engage. Every caseworker, supervisor, and up to the district manager have blatantly ignored me when I ask about my progress, what the agency is measuring for completion of conditions for return. Well, all of my conditions are unmet *because the agency claims I won't allow access into my home for them to assess what threats there are.* Their position is indefensible and impossible. But they have closed rank on me and I am in need of your assistance. Please.

The agency claimed that I was not interested in planning for my daughter while she was in the hospital and uncooperative with the agency. I was. I informed the agency that I had no desire to speak with them and that after they had already informed me at 5:40pm that they would be releasing my daughter to me, nineteen minutes later, the agency changed course and exercised emergency protective custody of my daughter without assessing me, without having a clinician consider the statement of self-harm that the agency now acknowledges my daughter outright denies having said that (it is also important that my Mother Marie Penn signed a sworn document and is willing to testify that the agency's reports contain at least two statements attributed to her that she flatly denies ever having made to any ODHS worker and was shocked to see the statements being alleged to have come from her but that never did, exist in the court record presented to secure custody of my daughter.) There are a number of fabrications, misrepresentations, omissions of exculpatory information and a consistent suppression of a true narrative that their own records provides. The worker who testified at the hearing, though, either did not read the records or disregarded their contents entirely in what she presented to the court which Sonya Faulkner claims is a matter of

"interpretation/perception" in her recent response to me. Mr. Ross, two statements the agency claims my mother made that she very strongly asserts she did not make is not a matter of "interpretation" - it is the agency attempting to minimize the use of false evidence to secure custody of my child.

having the juvenile clerk suppress my shelter hearing filing, after the court sent notice to the incorrect address (admittedly) but still finding diligent efforts to serve me, while the agency has cited no conduct of mine that authorizes my daughter's removal from my care after she was removed from her father, having the caseworker tell me there is no conduct that I am being measured in as required to ameliorate the safety concerns the agency has not cited exist in my home, and promising to return my daughter but only upon my waiving my fourth amendment rights and allowing scheduled and unscheduled ODHS presence in my home "to assess" the danger they claim both that they have not had the opportunity to assess and that they also claim exists meeting the threshold of compelling circumstances for her removal from me

The central issue is important: **Ms. Faulkner did not actually address the proceeding in which the alleged misconduct occurred.**

My complaint principally concerns the **October 31, 2025 jurisdictional hearing**, not the September 8, 2025 shelter hearing. The allegations I presented concern sworn testimony given at the jurisdictional trial, including testimony by ODHS caseworker Emilie Marquand, and material omissions and representations made to the court in connection with obtaining and maintaining jurisdiction over my daughter.

Ms. Faulkner's response states that she "obtained the shelter hearing recordings and reviewed the testimony" and, based on that review, found no indication that an employee committed perjury or engaged in concerning professional conduct. She then characterized the issue as a "difference in interpretation and perspective."

That does not address the evidence I submitted. Part of what I submitted and asserted was that my Mother, Marie Penn, is willing to testify under oath and has provided a sworn statement that the statements the agency supplied the court which the attributed to her- she never said them. It is difficult to believe that a leader in Ms Faulkner's position would not be able to delineate between "interpretation" and "perspective" and my Mother unequivocally denying having made the statements the agency purported she made during the investigation of this case.

The distinction matters. The shelter hearing was a preliminary proceeding, and I understand that the evidentiary framework at that stage is different and that there may be circumstances in which a witness's characterization of information could plausibly be defended as an interpretation of preliminary evidence. But that is not the proceeding at issue in my principal allegations.

The **jurisdictional hearing was the adjudicatory proceeding at which the State presented evidence and obtained findings establishing jurisdiction.** The testimony at issue there consists of specific factual assertions that can be compared against ODHS's own contemporaneous records.

This is not simply a disagreement about how the evidence should be interpreted.

For example, my submission identifies testimony that I did not engage in services and failed to complete services, while ODHS's own records contain documentation of my completion or participation in several of those services. It identifies testimony concerning my supposed failure to protect my daughter, while the agency's own records document circumstances materially inconsistent with that characterization. It identifies representations concerning warrants, visitation, my communications with the agency, statements attributed to family members, and other factual matters that I contend are contradicted by the agency's own records or by the witness's testimony elsewhere in the same proceeding.

The notice I sent to Ms. Faulkner specifically explains that these are not merely my word against an agency employee's. It identifies the underlying agency records, transcripts, recordings, and other evidence against which the testimony can be objectively tested.

The record also raises a separate but related issue concerning the original removal. ODHS's contemporaneous records state that the immediate reason for continuing protective custody was an alleged statement by my daughter concerning suicidal intent if she returned to my care. That statement was subsequently recanted, and the agency's records document the recantation before the shelter hearing. My notice addresses the discrepancy between the basis communicated to me, the statutory predicate recorded by the agency, the allegations ultimately pleaded, and the information presented to the court.

There is also a significant service and default issue. My notice identifies evidence that the agency's own sworn submissions concerning diligent efforts and my whereabouts are inconsistent with contemporaneous records showing that the agency had my correct address and communications with me. I contend that this resulted in my being treated as an absent or unavailable parent and ultimately defaulted despite the agency possessing information demonstrating otherwise.

I am not asking you to accept my characterization of any of this. I am asking whether an attorney experienced in civil-rights litigation and child-welfare cases would look at the underlying evidence and conclude that there is a legally cognizable issue.

There is another development that makes the matter particularly urgent.

On the morning of August 11, 2026, my daughter's current ODHS caseworker, David Milne, transported her to a medical appointment. Afterward, I was on the telephone with Mr. Milne asking him to identify the actual safety concern preventing my daughter from returning home. He repeatedly referred only to a "safety plan." When I asked what specific danger the plan was intended to address, he initially gave "no children are being beaten with a belt" as an example, then acknowledged that this was merely an example and shifted to statements allegedly made by my daughter at the hospital.

While I was still on the telephone and pressing him to identify an actual, current safety threat, my daughter began screaming. Mr. Milne had closed the vehicle door on her arm while she was reaching into the vehicle for her paperwork and a toy from her medical appointment. I have the incident recorded. A neighbor came outside and witnessed the aftermath. Paramedics were called, and my daughter was taken to the hospital for evaluation of her injured arm.

There is also a prior incident in which Mr. Milne allegedly told my daughter that he would hit her, but would not "give her the satisfaction."

I have preserved the recording and am preserving the witness and medical evidence.

That incident is relevant to the broader posture of this case because ODHS removed my daughter from my care on the asserted premise that she faced physical danger, yet she has remained in state custody while the agency itself has allegedly subjected her to conduct resulting in physical injury. I recognize that the legal significance of the incident must be evaluated from the evidence and that an accidental injury is not necessarily misconduct. I am not asking you to assume otherwise. I am asking counsel to evaluate it in the context of the agency's continued assertion that separation from me is necessary for her safety.

My concern is therefore not simply that ODHS made mistakes. It is that the agency has continued to rely upon a record that I believe its own files contradict, while the person responsible for reviewing my complaint responded by reviewing a different proceeding from the one principally challenged.

The attached notice lays out the factual record in considerably greater detail. It identifies the specific representations at issue, the evidence that contradicts them, the procedural history, and the authorities I believe may be implicated. For example, the notice identifies the Ninth Circuit authorities addressing fabrication of evidence and constitutional violations in child-welfare proceedings, including *Devereaux v. Abbey*, *Costanich v. Department of Social & Health Services*, *Hardwick v. Vreeken*, and *Spencer v. Peters*.

I also documented that Ms. Faulkner previously told me, on a recorded January 28, 2026 call, that if she found unlawful or concerning information in the record, including perjury, she would "absolutely handle that" with the employees involved and notify the court.

Her subsequent response is why I am now looking outside the agency for an independent legal assessment.

I would like to know whether you would be willing to review the jurisdictional-hearing transcript and the underlying ODHS records and evaluate:

1. whether the identified testimony and representations are materially contradicted by the agency's own records;
2. whether the omissions and alleged fabrication could support a constitutional claim concerning the procurement or maintenance of juvenile-court jurisdiction;
3. whether the service/default history creates an independent due-process issue;
4. whether the continued reliance upon allegedly false or materially misleading information creates an actionable continuing violation;
5. what remedies, if any, may presently be available in the juvenile court notwithstanding the existing orders; and
6. whether the evidence supports a federal civil-rights action or related state-law claims against the appropriate defendants.

I am not looking for someone simply to validate my position. I need someone who will tell me, after examining the evidence, where the case is strong, where it is weak, what claims are viable, and what procedural obstacles I would face.

I can provide the complete jurisdictional transcript, the shelter transcript and recordings, ODHS records, the formal notice and exhibits, the relevant court filings, the recordings referenced above, and the documentation concerning the August 11 incident.

If you are willing to take a look, I would appreciate the opportunity to speak with you. If this is outside your practice, I would also appreciate a referral to counsel with substantial experience litigating § 1983 claims involving child-welfare agencies and fabrication or suppression of evidence in dependency proceedings.

Thank you for your time.

Respectfully,

AshLe' Penn

[Quoted text hidden]